Zimbabwe

Harare City Building (Private) Act

Chapter 29:07

Legislation as at 31 December 2016

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Harare City Building (Private) Act (Chapter 29:07)
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Zimbabwe

Harare City Building (Private) Act
Chapter 29:07

Commenced on 22 August 1952

[This is the version of this document at 31 December 2016 and includes any amendments published up to 31 December 2017.]

[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

AN ACT to empower the City Council of Harare to erect on Stand No. 3169, Salisbury Township, a multi-storeyed building incorporating shops, restaurants, offices and residential flats and to sell the said Stand and multi-storeyed building or to let the said shops, restaurants, offices and residential flats; to validate anything done in pursuance of the foregoing and to provide for matters incidental thereto.

WHEREAS, in view of the current shortage of housing and living accommodation in the City of Harare and adjoining areas, it is expedient that the City Council of Harare should erect and construct living accommodation in the form of flats in a multi-storeyed building;

AND WHEREAS the City Council of Harare has embarked upon the construction and erection of such a multi-storeyed building upon Stand No. 3169, Salisbury Township;

AND WHEREAS the cost of such multi-storeyed building is now estimated, owing to the recent rise in the cost of building, to be such as would render the rental of such flats unduly high;

AND WHEREAS it is therefore expedient to empower the City Council of Harare to incorporate in such multi-storeyed building, shops, restaurants and offices in addition to residential flats, so that the comparatively high rentals of the former may enable the rental of the latter to be lowered;

AND WHEREAS it is expedient to validate anything done in connection with the foregoing—

1. Short title

This Act may be cited as the Harare City Building (Private) Act *[Chapter 29:07]*.

2. Powers of Harare City Council

(1) The City Council of Harare shall have power and authority—

(a) to construct a multi-storeyed building containing shops, restaurants, offices and not less than nine floors of residential flats upon the land specified in the Schedule;

(b) to lease such shops, restaurants, offices and residential flats;

(c) to sell such multi-storeyed building, whether the construction of the same shall have been completed or not, together with the land specified in the Schedule;

(d) to set aside moneys out of its ordinary revenue for any of the purposes prescribed in this subsection.

(2) It shall not be necessary to obtain the consent of the Minister responsible for local government to the leasing of any such shops, restaurants, offices and residential flats or for the sale of such multi-storeyed building and land.

3. Validation of things done

Anything which has been done before the 22nd August, 1952, which could have been lawfully done under the provisions of this Act shall be deemed to have been lawfully done under this Act.

Schedule (Section 2)

Certain seventeen thousand eight hundred and twenty-five (17 825) square feet of land being Stand No. 3169, Salisbury Township, portion of Gardens situate in the District of Harare.

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